



AUNG SOLUTIONS NIGERIA LIMITED

AUNG ONE PLATFORM

END USER AGREEMENT

This End User Agreement (“Agreement”) governs access to and use of the AUNG ONE platform, mobile application, website, access control system, and related services provided by AUNG Solutions Nigeria Limited.

This Agreement is made available electronically and shall become legally binding upon electronic acceptance by any resident, occupant, visitor, service provider, estate official, administrator, or other authorized user (collectively referred to as the “User”) through the AUNG ONE platform, including but not limited to selecting or ticking the “I Agree,” “Accept,” or “Accept Terms and Conditions” checkbox, creating an account, generating an access code, accessing the platform, or otherwise using any part of the AUNG ONE services.

By accepting this Agreement electronically, the User confirms that he or she has read, understood, and agrees to be bound by the terms and conditions contained herein.

For the purposes of this Agreement:

AUNG Solutions Nigeria Limited (“AUNG”) is a company duly incorporated under the laws of the Federal Republic of Nigeria and is the owner, operator, and licensor of the AUNG ONE platform and related services.

User means any resident, occupant, visitor, service provider, estate employee, estate administrator, property manager, security personnel, or any other person authorized to access or use the AUNG ONE platform through a participating estate, gated community, organized property, or authorized facility.

The AUNG ONE platform is a digital community infrastructure solution that facilitates visitor authorization, resident verification, access control, payment processing, subscription management, reporting, and other related community operational services.

This Agreement shall take effect on the date and time the User electronically accepts the Agreement or first accesses or uses the AUNG ONE platform (“Effective Date”).

Electronic acceptance of this Agreement shall constitute a valid and binding agreement between AUNG and the User and shall have the same legal force and effect as a



handwritten signature in accordance with applicable laws governing electronic transactions in the Federal Republic of Nigeria.

By using the AUNG ONE platform, the User acknowledges that access to certain features and services may be subject to payment compliance, estate rules, access control policies, and other requirements established by the participating estate and implemented through the platform.

1. Agreement Overview

This End User Agreement ("Agreement") sets out the terms and conditions governing the Resident/User's access to and use of estate services, facilities, payment systems, visitor authorization services, access control systems, and other community-related services made available by the **Estate** through the **AUNG ONE platform**.

This Agreement is entered into between the **Estate** and the **Resident/User**. By registering, accessing, using, or benefiting from any service provided through the AUNG ONE platform, the Resident/User agrees to be bound by the terms and conditions contained herein.

The Resident/User acknowledges that the Estate utilizes the AUNG ONE platform as part of its operational infrastructure for the administration and management of community services, including but not limited to:

- digital payment processing and transaction administration;
- service charge, subscription, levy, and access-related payment management;
- visitor verification and access code generation;
- resident identity verification and access control administration;
- transaction records, audit trails, and activity logs; and
- other estate management, security, and community operational services made available from time to time.

The Resident/User acknowledges and agrees that access to certain estate services, facilities, privileges, permissions, or platform functionalities may be subject to:

- payment compliance;
- estate rules, policies, and bylaws;
- visitor authorization requirements;
- access control procedures; and
- any other conditions established by the Estate from time to time.

This Agreement governs the relationship between the Estate and the Resident/User with respect to the Resident/User's use of estate services delivered, administered, or facilitated through the AUNG ONE platform.

Unless terminated in accordance with the provisions of this Agreement, this Agreement shall remain in force for as long as the Resident/User resides within, occupies, visits, accesses, or utilizes services provided by the Estate through the AUNG ONE platform.

In the event of any conflict between this Agreement and any prior discussions, communications, notices, representations, or understandings between the Estate and the Resident/User relating to the subject matter of this Agreement, the provisions of this Agreement shall prevail unless otherwise expressly agreed in writing by the Estate.

The Resident/User acknowledges that **AUNG Solutions Nigeria Limited ("AUNG")** provides the AUNG ONE platform solely as a technology and infrastructure service provider and is not a party to the resident-estate relationship governed by this Agreement. Accordingly, AUNG shall not be responsible for estate governance, resident management, security decisions, payment enforcement, visitor approvals, access restrictions, or any other administrative or operational decisions made by the Estate.

For the avoidance of doubt, nothing in this Agreement shall be construed as creating any ownership rights, tenancy rights, partnership, employment relationship, agency relationship, or proprietary interest between the Estate and the Resident/User, nor shall it confer any ownership or proprietary interest in the AUNG ONE platform, which remains the exclusive property of AUNG Solutions Nigeria Limited.

2. Scope of Services

The purpose of this Agreement is to define the scope, structure, and conditions under which the **Estate** makes available certain community, payment, access control, security,

communication, and operational services to the **Resident/User** through the **AUNG ONE platform**.

The Estate may utilize the AUNG ONE platform to facilitate the administration and delivery of various estate services, including but not limited to:

- resident registration, profile management, and verification;
- service charge payments, subscriptions, levies, and other community-related payments;
- visitor and service personnel authorization and access code generation;
- resident access control and identity verification;
- notifications, announcements, reminders, and estate communications;
- access to transaction records, payment history, and account information; and
- other community management, security, and operational services made available by the Estate from time to time.

The Resident/User acknowledges that the availability of specific services, features, privileges, permissions, or functionalities may vary based on:

- the Estate's policies and operational requirements;
- applicable payment obligations and compliance requirements;
- access control rules and security procedures;
- resident status and account standing; and
- any other conditions established by the Estate from time to time.

The Estate reserves the right to introduce, modify, suspend, restrict, or discontinue any service, feature, or functionality where reasonably necessary for operational, security, administrative, legal, or community management purposes.

The Resident/User further acknowledges and agrees that access to certain services or features may be conditional upon compliance with applicable fees, service charges, subscriptions, access enablement requirements, estate policies, visitor authorization procedures, and other obligations imposed by the Estate.

For the avoidance of doubt, **AUNG Solutions Nigeria Limited ("AUNG") is not a party to the relationship between the Estate and the Resident/User and provides the AUNG ONE platform solely as a technology and infrastructure service provider.**

Accordingly, AUNG shall not be responsible for:

- estate governance or management decisions;
- resident disciplinary actions or sanctions;
- visitor approval or rejection decisions;
- service charge enforcement or collection policies;
- access restrictions imposed by the Estate;
- estate security operations or procedures; or
- any other administrative, operational, or regulatory decisions made by the Estate.

All decisions relating to resident rights, obligations, access privileges, payment requirements, visitor approvals, community rules, and estate administration shall remain the sole responsibility of the Estate.

The Resident/User acknowledges that continued use of estate services through the AUNG ONE platform constitutes acceptance of the operational procedures, access requirements, and service conditions established by the Estate from time to time.

3. Roles & Responsibilities

The Estate shall be responsible for the administration, management, and enforcement of its policies, rules, and services made available to Residents through the AUNG ONE platform.

3.1.1 Estate Services Administration

The Estate may utilize the AUNG ONE platform to administer and manage:

- service charge collections and payment administration;
- resident subscriptions and community levies;

- visitor access authorization and verification;
- resident identity verification and access control;
- estate communications, notifications, and announcements; and
- other community management and operational services.

3.1.2 Estate Policies & Enforcement

The Estate shall be solely responsible for establishing, implementing, and enforcing its:

- estate rules and regulations;
- community guidelines and bylaws;
- access control policies;
- payment policies and enforcement measures;
- visitor approval procedures; and
- security and operational requirements.

The Resident acknowledges that the Estate may implement, modify, suspend, or enforce such policies from time to time in accordance with its governance procedures.

3.1.3 Access Control Administration

The Estate may configure and administer access permissions, visitor authorization requirements, resident privileges, and other operational controls through the AUNG ONE platform.

The Estate reserves the right to approve, deny, suspend, restrict, or revoke access privileges in accordance with its policies and operational requirements.

3.1.4 Resident Communications

The Estate may communicate notices, announcements, payment reminders, warnings, compliance requirements, policy updates, and other estate-related information through the AUNG ONE platform or any other communication channel approved by the Estate.

3.1.5 Compliance with Applicable Laws

The Estate shall remain solely responsible for complying with all laws, regulations, bylaws, permits, and statutory obligations applicable to its governance, administration, and operation.

3.2 Responsibilities of the Resident/User

The Resident/User shall be solely responsible for the following:

3.2.1 Account Information & Accuracy

The Resident/User shall provide accurate, complete, and current information when registering for or using services made available through the AUNG ONE platform and shall promptly update any information that becomes inaccurate or outdated.

3.2.2 Payment Obligations

Where applicable, the Resident/User shall pay all service charges, subscriptions, levies, access enablement fees, penalties, assessments, or other amounts required by the Estate within the prescribed timelines.

Failure to comply with payment obligations may result in:

- restriction of visitor access code generation;
- suspension of access-related services or privileges;
- limitation of certain platform functionalities;
- denial of access to estate services; or
- any other enforcement measures authorized by the Estate.

3.2.3 Compliance with Estate Rules

The Resident/User shall comply with all estate rules, community regulations, access control procedures, payment requirements, visitor policies, and other operational directives issued by the Estate.

3.2.4 Lawful Use

The Resident/User shall use estate services and the AUNG ONE platform only for lawful and authorized purposes and shall not engage in any conduct that:

- violates applicable law;
- compromises estate security;
- interferes with community operations; or
- infringes upon the rights of other residents or users.

3.2.5 Protection of Access Credentials

The Resident/User shall maintain the confidentiality of all account credentials, passwords, access codes, visitor authorizations, and authentication information.

The Resident/User shall not share, transfer, duplicate, sell, misuse, or permit unauthorized use of such credentials.

The Resident/User shall be responsible for all activities conducted through their account or using their credentials.

3.2.6 Responsibility for Conduct

The Resident/User shall be solely responsible for any consequences arising from:

- inaccurate or misleading information provided by the Resident/User;
- unauthorized sharing or misuse of credentials;
- violation of estate policies or regulations;
- misuse of estate services or platform functionality; or
- any unlawful, negligent, or improper conduct by the Resident/User.

3.3 Role of AUNG ONE Platform

The Resident/User acknowledges that AUNG Solutions Nigeria Limited ("AUNG") provides the AUNG ONE platform solely as a technology and infrastructure service provider for use by the Estate.

Accordingly, AUNG:

- does not manage or govern the Estate;
- does not determine estate policies or rules;

- does not decide resident privileges or sanctions;
- does not approve or reject visitors;
- does not enforce service charges or community levies; and
- does not make security or governance decisions on behalf of the Estate.

All decisions relating to resident access, visitor approvals, payment enforcement, disciplinary actions, security procedures, and estate governance shall remain the sole responsibility of the Estate.

For the avoidance of doubt, any dispute relating to estate policies, access restrictions, service charges, visitor approvals, resident obligations, or community governance shall be resolved directly between the Estate and the Resident/User, and AUNG shall not be a party to such dispute.

4. Service Availability & Uptime

The Estate shall use reasonable efforts to make services provided through the **AUNG ONE platform** available to Residents and authorized Users on an ongoing basis, subject to maintenance requirements, operational needs, security measures, and circumstances beyond the reasonable control of the Estate or its service providers.

The Resident/User acknowledges and agrees that services provided through the AUNG ONE platform are made available on an “**as available**” and “**as is**” basis.

Neither the Estate nor AUNG Solutions Nigeria Limited ("AUNG") guarantees uninterrupted, error-free, secure, or continuous availability of the platform or any estate service delivered through the platform.

Service interruptions, delays, restrictions, or temporary unavailability may occur as a result of, including but not limited to:

- scheduled or emergency maintenance, upgrades, or security updates;
- internet connectivity failures, telecommunications outages, or network disruptions;
- failures or disruptions involving third-party service providers, payment processors, cloud infrastructure, or utility services;

- device, hardware, software, or network issues affecting the Resident/User or the Estate;
- security incidents, cyberattacks, technical malfunctions, or system failures;
- operational requirements of the Estate; or
- force majeure events or other circumstances beyond the reasonable control of the Estate or AUNG.

The Estate reserves the right to temporarily suspend, restrict, modify, or discontinue any service, feature, or functionality where reasonably necessary for maintenance, security, operational, administrative, or regulatory purposes.

Where reasonably practicable, the Estate may provide prior notice of planned maintenance, service interruptions, or operational changes through the AUNG ONE platform or any other approved communication channel.

The Resident/User agrees that any temporary interruption, delay, degradation, restriction, or unavailability of estate services or platform functionality shall not constitute a breach of this Agreement and shall not entitle the Resident/User to any refund, compensation, damages, or other remedy, except where expressly required by applicable law.

The Resident/User further acknowledges that certain services, including visitor access code generation, resident access authorization, payment processing, notifications, and other estate-related functions, may depend on internet connectivity, telecommunications services, third-party infrastructure, electricity supply, or estate systems, and may therefore be affected by factors beyond the control of the Estate.

5. Fees, Billing & Payment Enforcement

5.1 Fees Payable

The Resident/User agrees to pay all applicable service charges, subscriptions, levies, access enablement fees, penalties, assessments, transaction-related charges, and any other amounts imposed by the Estate in connection with the Resident/User's use of estate services, facilities, and privileges.

Such fees may include, without limitation:

- the annual **Resident Access Enablement Fee**, where applicable;

- estate service charges and community levies;
- resident subscriptions and recurring charges;
- visitor access-related fees, where applicable;
- penalties, administrative charges, or assessments imposed by the Estate in accordance with its policies; and
- any other fees or charges communicated by the Estate from time to time.

All applicable taxes, levies, duties, or statutory charges shall be borne by the Resident/User where required by law.

5.2 Billing & Payment Terms

The Resident/User authorizes the Estate to collect payments through the payment channels made available via the AUNG ONE platform or any other approved payment method.

Payments may be made through:

- electronic payment gateways;
- bank transfers;
- card payments;
- digital wallets;
- USSD channels; or
- any other payment method approved by the Estate.

The Resident/User shall ensure that all payments are made within the timelines prescribed by the Estate.

Failure to dispute any charge within a reasonable period after notification shall be deemed acceptance of such charge.

5.3 Payment Default & Enforcement

Failure by the Resident/User to pay any amount due within the prescribed period shall constitute a payment default.

Where a payment default occurs, the Estate may, without prejudice to any other rights available under this Agreement, applicable law, or estate policies, implement one or more of the following measures:

a. Late Payment Charges

Apply late payment charges, administrative fees, penalties, or interest on outstanding amounts in accordance with the Estate's applicable policies.

b. Restriction of Services or Platform Features

Restrict or disable access to certain services or features, including but not limited to:

- visitor access code generation;
- resident access authorization services;
- service personnel authorization;
- resident account privileges;
- access-related functionalities; and
- other services linked to payment compliance.

c. Suspension of Access Privileges

Suspend access to certain estate services, facilities, permissions, or platform-related privileges where payment default continues beyond any applicable grace period established by the Estate.

d. Recovery of Outstanding Amounts

Pursue recovery of all outstanding fees, charges, penalties, assessments, and associated enforcement costs to the extent permitted by applicable law.

5.4 Payment-Linked Access Restrictions

The Resident/User acknowledges and agrees that certain estate services, permissions, and access privileges may be linked to payment compliance.

Where the Resident/User fails to pay any applicable service charge, subscription, access enablement fee, levy, or other required payment, the Estate may configure the AUNG ONE platform to automatically restrict access-related services and functionalities.

Such restrictions may include:

- suspension of visitor access code generation;
- restriction of visitor authorization privileges;
- limitation of certain resident services;
- restriction of access-related functionalities; and
- other enforcement measures approved by the Estate.

Where access to certain estate services is dependent upon valid authorization credentials generated through the platform, such restrictions may affect the Resident/User's ability to utilize those services until payment compliance is restored.

The Resident/User acknowledges that such restrictions are operational measures established and enforced by the Estate through the AUNG ONE platform.

5.5 No Waiver

Any delay, omission, or failure by the Estate to enforce any payment obligation, restriction, penalty, or right under this Agreement shall not constitute a waiver of such right and shall not prevent the Estate from enforcing the same at a later time.

5.6 Conditional Access

The Resident/User acknowledges that continued access to certain estate services, privileges, permissions, facilities, and platform functionalities may be conditional upon compliance with:

- applicable payment obligations;
- estate rules and policies;

- access control requirements;
- community regulations; and
- other operational requirements established by the Estate.

Any restriction, suspension, limitation, or enforcement action implemented under this Agreement may remain in effect until all outstanding obligations have been satisfied and verified by the Estate.

Role of AUNG ONE Platform

The Resident/User acknowledges that **AUNG Solutions Nigeria Limited ("AUNG")** merely provides the technology platform through which payments, access controls, notifications, and related services may be administered.

Accordingly, all decisions relating to fees, service charges, payment enforcement, access restrictions, penalties, waivers, and resident obligations remain the sole responsibility of the Estate, and AUNG shall not be liable for any dispute arising between the Estate and the Resident/User in connection with such matters.

6. Fees & Payment Obligations

6.1 Applicable Fees

The Resident/User acknowledges and agrees that access to certain estate services, facilities, privileges, and functionalities may be subject to applicable fees, charges, subscriptions, levies, assessments, and payment obligations imposed by the Estate and administered through the AUNG ONE platform.

Such fees may include, without limitation:

- a **7% transaction processing fee** on successful payments processed through the platform, where applicable;
- an annual **Resident Access Enablement Fee of ₦10,000**, where applicable;
- estate service charges, subscriptions, community levies, and assessments;
- visitor authorization or access-related fees, where applicable;

- fees associated with optional or premium estate services;
- penalties, administrative charges, or enforcement fees imposed by the Estate in accordance with its policies; and
- any other fees communicated by the Estate from time to time.

All applicable taxes, levies, duties, or statutory charges shall be borne by the Resident/User where required by law.

6.2 Fee Adjustments

The Resident/User acknowledges that fees, charges, subscriptions, levies, and pricing applicable to estate services may be reviewed and adjusted by the Estate from time to time.

The Estate reserves the right to revise applicable fees where such adjustments become necessary due to factors including, but not limited to:

- changes in estate operational or maintenance costs;
- upgrades to estate facilities, infrastructure, or services;
- inflationary pressures or prevailing economic conditions;
- increases in utility, security, administrative, or service delivery costs;
- regulatory, statutory, or compliance requirements;
- the introduction of new services, facilities, or operational features; or
- any other circumstance that materially affects the cost of managing and operating the Estate.

Where reasonably practicable, the Estate may provide prior notice of any material fee adjustment through the AUNG ONE platform, email, SMS, estate notices, or any other approved communication channel.

Continued use of estate services following the effective date of any fee adjustment shall constitute acceptance of the revised fees.

6.3 Non-Refundability

Except where otherwise required by applicable law or expressly approved by the Estate in writing, all fees, charges, subscriptions, levies, assessments, access enablement payments, transaction fees, penalties, and other amounts paid by the Resident/User shall be non-refundable.

This includes circumstances where:

- access to certain estate services or platform features is restricted or suspended due to non-payment;
- the Resident/User breaches this Agreement or applicable estate policies;
- the Resident/User voluntarily ceases to reside in, occupy, or utilize services within the Estate;
- the Resident/User elects not to use available estate services; or
- the Estate imposes access restrictions, sanctions, or enforcement measures in accordance with its policies.

The Resident/User acknowledges that payments made for access enablement, subscriptions, estate services, community administration, security services, visitor management, operational support, and related services represent consideration for services rendered and administrative costs incurred by the Estate and are therefore non-refundable once processed.

6.4 Payment Responsibility

The Resident/User remains solely responsible for ensuring that all applicable fees, service charges, subscriptions, levies, assessments, and other financial obligations due to the Estate are paid in full and within the prescribed timelines.

Failure to comply with payment obligations may result in enforcement measures by the Estate, including restrictions on certain services, access privileges, visitor authorization rights, or other benefits administered through the AUNG ONE platform.

6.5 Role of the AUNG ONE Platform

The Resident/User acknowledges that **AUNG Solutions Nigeria Limited ("AUNG")** provides the AUNG ONE platform solely as a technology and payment administration platform through which certain estate fees, payments, notices, and access-control functions may be facilitated.

Accordingly, all decisions relating to fee determination, fee adjustments, payment obligations, refunds, waivers, penalties, and payment enforcement shall remain the sole responsibility of the Estate, and any dispute relating to such matters shall be resolved directly between the Estate and the Resident/User.

7. Intellectual Property Rights

For the purposes of this Agreement, **"Intellectual Property Rights"** shall include all present and future rights relating to patents, inventions, copyrights, trademarks, service marks, business names, logos, domain names, design rights, software (including source code and object code), databases, proprietary algorithms, system architecture, workflows, documentation, trade secrets, confidential information, know-how, and all other intellectual property rights, whether registered or unregistered, including all renewals, extensions, and similar rights existing now or in the future in any jurisdiction worldwide.

All Intellectual Property Rights in and to the **AUNG ONE platform**, including but not limited to its software, source code, system architecture, algorithms, workflows, interfaces, documentation, trademarks, branding, content, and related materials, are and shall remain the exclusive property of **AUNG Solutions Nigeria Limited ("AUNG")** or its licensors.

The User acknowledges and agrees that access to the AUNG ONE platform is granted strictly on a **limited, personal, revocable, non-exclusive, and non-transferable license basis**. Nothing in this Agreement shall operate to transfer, assign, license, sublicense, or otherwise convey any ownership, title, or proprietary interest in the platform or its Intellectual Property Rights to the User or any third party.

Except as expressly permitted under this Agreement, the User shall not, and shall not permit any third party to:

- copy, reproduce, modify, adapt, or create derivative works from the platform;
- reverse engineer, decompile, disassemble, decrypt, or attempt to access the platform's source code or underlying technology;
- distribute, sublicense, sell, lease, rent, assign, or commercially exploit any part of the platform;
- remove, alter, or obscure any copyright, trademark, proprietary notice, or branding displayed on the platform; or
- develop, assist in developing, or attempt to develop any system, software, application, or solution derived from or substantially similar to the AUNG ONE platform.

The User further agrees not to take, or permit any action that may challenge, dilute, infringe, misappropriate, or otherwise adversely affect AUNG's ownership or control of its Intellectual Property Rights, including any attempt to register, claim ownership of, or acquire rights in any technology, software, trademark, brand, domain name, or system that is identical or confusingly similar to the AUNG ONE platform.

For the avoidance of doubt, the User's access to or use of the AUNG ONE platform shall not be construed as a sale, transfer, inheritance, assignment, or acquisition of any Intellectual Property Rights. All rights not expressly granted under this Agreement are reserved exclusively by **AUNG Solutions Nigeria Limited**.

8. End-User Obligations, Access Control & Platform Protection

8.1 End-User Status

For the purposes of this Agreement, a **Resident/User** includes any resident, occupant, tenant, homeowner, visitor, service provider, contractor, domestic staff, estate employee, or any other person authorized by the Estate to access services made available through the AUNG ONE platform.

The Resident/User acknowledges that access to certain estate services, privileges, and platform functionalities, including visitor access code generation, resident access authorization, payment services, and related features, may be subject to applicable fees, payment compliance, estate policies, and operational requirements established by the Estate.

8.2 Payment-Linked Access Restrictions

The Resident/User acknowledges and agrees that certain estate services and access privileges may be linked to payment compliance.

Where the Resident/User fails to pay any applicable service charge, subscription, levy, access enablement fee, penalty, assessment, or other amount due to the Estate, the Estate may configure the AUNG ONE platform to automatically restrict access to certain services or functionalities.

In such circumstances:

- the Resident/User may be unable to generate visitor access codes, resident access credentials, or other authorization codes;
- access to certain estate services or platform features may be restricted or suspended; and
- where estate entry, exit, visitor authorization, or access to specific facilities requires valid platform-generated credentials, the Resident/User's ability to utilize such services may be affected until payment compliance is restored.

Access privileges may be reinstated upon confirmation and verification of payment, subject to applicable processing timelines.

The Resident/User acknowledges that such restrictions are operational controls established by the Estate and implemented through the platform for the purpose of enforcing estate policies and payment compliance.

8.3 Prohibited Circumvention & Misuse

The Resident/User shall not:

- bypass, manipulate, disable, override, or attempt to circumvent any access control, payment enforcement, security measure, or operational restriction implemented by the Estate through the platform;
- share, duplicate, transfer, sell, lend, or misuse access credentials, visitor codes, authorization tokens, or account information;
- access or attempt to access another person's account without authorization;

- interfere with the operation, security, integrity, or functionality of the platform;
- use the platform for any fraudulent, deceptive, unlawful, or unauthorized purpose;
or
- engage in any activity that compromises the safety, security, rights, or interests of the Estate or other residents.

Any violation of this clause may result in the restriction, suspension, or termination of the Resident/User's access privileges, without prejudice to any other rights or remedies available to the Estate under this Agreement, estate policies, or applicable law.

8.4 Estate Access Control Rights

The Resident/User acknowledges that the Estate reserves the right to establish, administer, and enforce rules relating to:

- resident access privileges;
- visitor approvals and visitor management;
- payment compliance requirements;
- access control procedures;
- security protocols;
- use of estate facilities and services; and
- community governance and operational policies.

The Estate may restrict, suspend, revoke, or modify access privileges where reasonably necessary for security, operational, compliance, disciplinary, or administrative purposes.

8.5 Resident Responsibilities

The Resident/User shall be solely responsible for:

- complying with all applicable estate rules, policies, regulations, and payment obligations;

- maintaining the confidentiality and security of login credentials, passwords, access codes, and account information;
- ensuring that all information provided to the Estate through the platform is accurate, complete, and up to date;
- using estate services and the platform lawfully, responsibly, and in accordance with this Agreement; and
- any consequences arising from the Resident/User's acts, omissions, negligence, misuse, misconduct, or failure to comply with estate requirements.

The Resident/User shall remain responsible for all activities conducted using their account, credentials, access codes, or authorization privileges.

8.6 Estate Limitation of Responsibility

The Resident/User acknowledges that access to estate services, visitor approvals, access credentials, and community privileges remains subject to the Estate's policies and operational requirements.

Accordingly, the Estate shall not be liable for any inconvenience, delay, restriction, suspension, denial of access, or loss arising from:

- the Resident/User's failure to comply with payment obligations;
- violation of estate rules or policies;
- misuse of access credentials;
- inaccurate information supplied by the Resident/User;
- security requirements or operational decisions of the Estate; or
- circumstances beyond the reasonable control of the Estate.

Any dispute relating to service charges, visitor approvals, access restrictions, community rules, estate governance, or enforcement actions shall be addressed directly between the Resident/User and the Estate in accordance with this Agreement.

8.7 Platform Protection & Monitoring

To protect the security, integrity, and reliability of estate services delivered through the AUNG ONE platform, the Estate may:

- monitor account activity and platform usage;
- investigate suspected violations of this Agreement or estate policies;
- restrict, suspend, or terminate access privileges where misuse, fraud, abuse, or non-compliance is detected; and
- take any reasonable administrative, operational, technical, or legal action necessary to protect the Estate, its residents, visitors, facilities, and community interests.

8.8 Acknowledgement of Agreement

The Resident/User acknowledges that access to estate services through the AUNG ONE platform is subject to this Agreement and the Estate's applicable policies.

Continued use of the platform, generation of access credentials, use of estate services, payment of fees, or access to estate facilities shall constitute ongoing acceptance of this Agreement and any amendments properly communicated by the Estate from time to time.

9. Platform Exclusivity

The User acknowledges that the **AUNG ONE platform** is the authorized digital platform designated by the participating estate for the administration of payments, subscriptions, resident verification, visitor authorization, access control, access logging, and other related community operational services.

The User agrees not to engage in any activity that circumvents, undermines, interferes with, or attempts to replace the platform's authorized processes, controls, or operational functions.

Without limitation, the User shall not:

- use unauthorized systems, applications, or methods to bypass platform-based payment, access control, or authorization requirements;

- create, distribute, or utilize unauthorized access credentials, access codes, or verification methods intended to replace or circumvent the platform;
- interfere with, disrupt, or compromise the operation, security, integrity, or effectiveness of the platform;
- assist, encourage, or permit any other person to bypass platform controls, restrictions, or security mechanisms; or
- engage in any activity that materially diminishes the functionality, security, or intended purpose of the AUNG ONE platform.

The User acknowledges that access to certain estate services, permissions, privileges, or authorizations may be available exclusively through the AUNG ONE platform as determined by the participating estate.

Nothing in this Agreement shall prevent the User from utilizing lawful communication methods or administrative processes approved by the participating estate, provided that such activities do not conflict with, bypass, or materially impair the operation of the AUNG ONE platform.

Any breach of this clause may constitute a material violation of this Agreement and may result in:

- restriction, suspension, or termination of the User's access to the platform;
- revocation of access privileges or authorizations;
- enforcement actions by the participating estate in accordance with its policies; and/or
- any other remedies available to AUNG under this Agreement or applicable law.

The User further acknowledges that AUNG reserves the right to implement technical, administrative, or security measures necessary to protect the integrity, reliability, and intended operation of the AUNG ONE platform.

10. Non-Circumvention

The Resident/User agrees that, for as long as he or she resides in, occupies, visits, or utilizes services provided by the Estate through the AUNG ONE platform, he or she shall not directly or indirectly take any action intended to bypass, undermine, manipulate, avoid, or interfere with the Estate's access control systems, payment requirements, security procedures, operational processes, or enforcement mechanisms implemented through the platform.

10.1 Unauthorized Access Methods

The Resident/User shall not use, create, distribute, or permit the use of any unauthorized system, software, device, application, credential, code, process, or method designed to bypass, replicate, replace, interfere with, or defeat any access control, visitor authorization, payment verification, resident authentication, or security functionality established by the Estate.

10.2 Circumvention of Payment Obligations

The Resident/User shall not attempt to avoid, evade, manipulate, conceal, or bypass any service charges, subscriptions, levies, access enablement fees, penalties, assessments, or other payment obligations imposed by the Estate.

10.3 Unauthorized Access Authorization

The Resident/User shall not generate, share, transfer, duplicate, sell, falsify, alter, misuse, or permit the unauthorized use of visitor access codes, resident credentials, authorization tokens, access permits, or any other access mechanism issued through the platform.

10.4 Interference with Estate Controls

The Resident/User shall not disable, override, manipulate, tamper with, or interfere with any access restrictions, monitoring systems, verification procedures, security measures, automated controls, or enforcement mechanisms implemented by the Estate through the platform.

10.5 Assisting Circumvention by Others

The Resident/User shall not encourage, assist, authorize, facilitate, or permit any other person to bypass estate policies, payment requirements, access restrictions, visitor authorization procedures, security measures, or operational controls.

10.6 Actions Affecting Estate Operations

The Resident/User shall not engage in any activity that may impair, compromise, disrupt, diminish, or adversely affect:

- the security of the Estate;
- the integrity of access control procedures;
- payment enforcement mechanisms;
- visitor management processes;
- estate operations and administration; or
- the proper functioning of services delivered through the AUNG ONE platform.

The Resident/User acknowledges that any act of circumvention, interference, fraud, unauthorized access, or misuse constitutes a material breach of this Agreement.

In the event of such breach, the Estate may, without prejudice to any other rights or remedies available under this Agreement, estate policies, or applicable law:

- immediately restrict, suspend, or terminate the Resident/User's access privileges;
- revoke visitor authorization rights and access credentials;
- disable access codes, resident accounts, or related permissions;
- deny access to certain estate services or facilities;
- impose applicable sanctions permitted under estate policies; and/or
- pursue any legal, administrative, or equitable remedies available under applicable law.

The Resident/User further acknowledges that violations involving fraud, unauthorized access, security breaches, or unlawful conduct may be reported by the Estate to law enforcement agencies, regulatory authorities, or other appropriate bodies where necessary.

The provisions of this clause shall survive the suspension, termination, or expiration of this Agreement to the extent necessary to protect the Estate's security, payment enforcement rights, operational interests, and the integrity of its access control systems and community services.

11. Confidentiality & Non-Disclosure

The Resident/User acknowledges that, in connection with the use of estate services and the AUNG ONE platform, he or she may have access to, receive, observe, or otherwise become aware of confidential, proprietary, private, or non-public information relating to the Estate, its residents, service providers, operations, or community affairs.

For the purposes of this Agreement, "Confidential Information" includes, without limitation:

- resident records, contact details, and personal information;
- estate operational procedures, security protocols, and access control measures;
- visitor records, access logs, and authorization data;
- estate financial information, service charge records, and payment-related information;
- internal communications, notices, reports, and administrative information;
- information relating to the safety, security, governance, or management of the Estate;
- personal data protected under applicable privacy and data protection laws; and
- any other information designated as confidential or which a reasonable person would consider confidential by its nature.

The Resident/User shall:

- keep all Confidential Information strictly confidential;
- use such information only for lawful and authorized purposes connected with residence, occupancy, visitation, or participation within the Estate;
- not disclose, publish, distribute, reproduce, transmit, or make available any Confidential Information to any third party without the prior written consent of the Estate, except where required by law;
- take reasonable precautions to prevent unauthorized access, disclosure, misuse, loss, or compromise of Confidential Information; and
-

- comply with all applicable privacy, confidentiality, and data protection requirements relating to information obtained through the Estate or the AUNG ONE platform.

The Resident/User shall not use Confidential Information for personal gain, commercial advantage, competitive purposes, harassment, unlawful activity, or any purpose unrelated to the legitimate use of estate services.

The obligations contained in this clause shall not apply to information that:

- is or becomes publicly available through no fault of the Resident/User;
- was lawfully obtained from a third party without any confidentiality obligation;
- was already lawfully known to the Resident/User prior to disclosure; or
- is required to be disclosed by law, court order, or regulatory authority, provided that the Resident/User gives prior notice to the Estate where legally permissible.

The Resident/User acknowledges that personal information relating to other residents, visitors, service providers, estate personnel, or members of the community is confidential and shall not be collected, shared, published, recorded, or used in a manner that violates applicable law, privacy rights, or estate policies.

The obligations under this clause shall survive the suspension, termination, or expiration of this Agreement and shall continue for so long as the relevant information remains confidential.

For the avoidance of doubt, unauthorized disclosure, misuse, publication, distribution, or exploitation of Confidential Information may result in disciplinary action by the Estate, restriction or termination of access privileges, legal proceedings, claims for damages, or any other remedies available under this Agreement, estate policies, or applicable law.

The Resident/User further acknowledges that AUNG Solutions Nigeria Limited provides the AUNG ONE platform solely as a technology service provider. Any confidential information relating to the platform, estate operations, residents, security procedures, or community management shall be protected in accordance with this Agreement and applicable law.

12. Prohibited Uses

The Resident/User shall not use estate services or the AUNG ONE platform for any unlawful, fraudulent, unauthorized, harmful, or improper purpose.

Without limitation, the Resident/User shall not:

- a.** use the platform or any estate service in violation of applicable laws, regulations, estate rules, community policies, or the rights of any other person;
- b.** copy, reproduce, modify, adapt, reverse engineer, decompile, disassemble, decrypt, or otherwise attempt to access, replicate, or derive the underlying technology, software, or functionality of the platform;
- c.** bypass, disable, interfere with, manipulate, or attempt to circumvent any access controls, payment enforcement measures, security features, monitoring systems, authentication procedures, or operational restrictions implemented by the Estate through the platform;
- d.** share, transfer, sell, lease, lend, distribute, sublicense, or permit unauthorized use of resident accounts, access credentials, visitor codes, authorization tokens, or authentication information;
- e.** introduce malware, viruses, malicious code, harmful software, automated scripts, bots, or any activity that may compromise the integrity, security, availability, reliability, or performance of estate services or the platform;
- f.** provide false, misleading, inaccurate, incomplete, or fraudulent information to the Estate through the platform;
- g.** impersonate another person, use another person's account without authorization, or falsely represent identity, authority, residence status, or affiliation;
- h.** engage in any activity that interferes with the normal operation of estate services, estate administration, security procedures, visitor management processes, or the ability of other residents and users to access or use the platform;
- i.** generate, obtain, distribute, or use unauthorized access credentials, visitor authorizations, resident codes, or other access mechanisms for the purpose of gaining unauthorized entry into the Estate or facilitating unauthorized access by any third party;

j. use the platform or any estate service in a manner that may cause legal, operational, financial, reputational, or security harm to the Estate, its residents, visitors, service providers, or community operations; or

k. engage in any conduct that compromises the safety, security, peace, welfare, or orderly administration of the Estate.

Any violation of this clause shall constitute a material breach of this Agreement and may result in one or more of the following actions by the Estate:

- restriction, suspension, or termination of access privileges;
- suspension of visitor authorization rights;
- deactivation of access credentials or resident accounts;
- denial of access to certain estate services or facilities;
- enforcement measures in accordance with estate policies; and/or
- legal action where permitted under applicable law.

The Estate reserves the right to investigate suspected violations of this Agreement and to take any administrative, operational, technical, or legal action reasonably necessary to protect the Estate, its residents, visitors, facilities, security systems, and community interests.

13. Audit & Compliance Rights

To protect the security, integrity, and lawful operation of the **AUNG ONE platform**, AUNG Solutions Nigeria Limited ("AUNG") reserves the right to monitor, review, verify, and investigate the User's use of the platform for the purpose of ensuring compliance with this Agreement, applicable laws, estate policies, and platform requirements.

Such monitoring and verification may include, without limitation, the review of:

- account activity and usage records;
- payment and transaction records;
- access logs and authentication records;

- visitor access code generation and usage history;
- security alerts and system-generated reports; and
- any other information reasonably required to investigate suspected misuse, fraud, security threats, or violations of this Agreement.

Where AUNG reasonably determines that the User has engaged in non-compliance, unauthorized activity, fraud, circumvention, misuse, or any breach of this Agreement, AUNG may require the User to:

- provide additional information or verification;
- rectify or cease the non-compliant activity;
- settle any outstanding fees or obligations; and/or
- comply with any reasonable corrective measures required by AUNG or the participating estate.

AUNG reserves the right to restrict, suspend, or terminate the User's access to the platform where it reasonably believes that continued access may pose a security, operational, legal, or reputational risk.

The User acknowledges and agrees that AUNG may retain and rely upon platform activity records, transaction logs, access records, and other electronically generated data as evidence of platform usage, compliance, or breach of this Agreement.

Nothing in this Agreement shall require AUNG to disclose its proprietary source code, security systems, algorithms, confidential infrastructure, monitoring tools, or internal platform architecture, except where required by applicable law

14. Survival of Intellectual Property & Payment Obligations

Notwithstanding the suspension, restriction, termination, deletion of an account, or expiration of this Agreement for any reason, the provisions relating to:

- **Intellectual Property Rights;**
- **Confidentiality & Non-Disclosure;**

- **Fees, Billing & Payment Obligations;**
- **Non-Circumvention;**
- **Limitation of Liability;**
- **Indemnity;**
- **Dispute Resolution & Arbitration; and**
- **Any other provision which by its nature is intended to survive termination**

shall survive such suspension, restriction, termination, or expiration and shall remain binding on the User and AUNG for so long as necessary to give full effect to their purpose, to the fullest extent permitted by applicable law.

Termination, suspension, or expiration of this Agreement shall not affect:

- any rights, remedies, claims, or liabilities that accrued prior to such termination;
- AUNG's right to recover any outstanding fees, charges, penalties, costs, or damages owed by the User;
- the User's obligation to comply with post-termination restrictions relating to Intellectual Property Rights, Confidential Information, platform security, and prohibited conduct; or
- AUNG's right to retain and use platform records, transaction logs, access records, and other data where required for legal, regulatory, security, operational, or evidentiary purposes.

For the avoidance of doubt, termination of this Agreement shall not relieve the User of any obligation or liability arising from acts, omissions, breaches, misuse, fraud, or unauthorized activities that occurred before the effective date of such termination.

15. Indemnity

The User agrees to **indemnify, defend, and hold harmless** AUNG Solutions Nigeria Limited, including its directors, officers, employees, contractors, affiliates, licensors, service providers, and agents (collectively, the "**Indemnified Parties**"), from and against any and all claims, demands, actions, proceedings, losses, damages, liabilities, fines,

penalties, costs, and expenses, including reasonable legal and professional fees, arising out of or in connection with:

15.1 User's Use of the Platform

The User's access to, use of, misuse of, or inability to use the AUNG ONE platform, including any act, omission, negligence, misconduct, or unauthorized activity by the User.

15.2 Breach of this Agreement

Any breach or violation of this Agreement by the User, including breaches relating to payment obligations, confidentiality, non-circumvention, prohibited uses, account security, access control requirements, or any other provision of this Agreement.

15.3 Unauthorized Access or Security Violations

Any unauthorized use of the User's account, access credentials, visitor access codes, authentication tokens, or any activity resulting from the User's failure to protect such credentials.

15.4 Violations of Law or Estate Policies

Any violation of applicable laws, regulations, court orders, community rules, estate policies, or access control requirements attributable to the User.

15.5 Third-Party Claims

Any dispute, complaint, claim, or proceeding brought by another user, resident, visitor, vendor, service provider, estate representative, governmental authority, or other third party arising from the User's conduct, actions, omissions, or use of the platform.

15.6 User Content and Information

Any data, content, information, documents, communications, or materials submitted, uploaded, transmitted, or processed by the User through the platform that infringe, misappropriate, violate, or are alleged to violate the rights of any third party.

15.7 Fraudulent or Misleading Activities

Any fraudulent, deceptive, unlawful, or misleading activity conducted by the User through or in connection with the AUNG ONE platform.

15.8 Regulatory, Reputational, or Legal Exposure

Any act or omission of the User that exposes AUNG or any Indemnified Party to legal, regulatory, financial, operational, or reputational risk.

The indemnity obligations contained in this clause shall survive the suspension, restriction, termination, deletion of the User's account, or expiration of this Agreement and shall apply regardless of whether the relevant claim arises during or after the User's use of the platform.

Nothing in this clause shall require the User to indemnify AUNG for any claim arising solely from AUNG's fraud, willful misconduct, or gross negligence, to the extent prohibited by applicable law

16. Termination

16.1 Termination with Notice (Ordinary Termination)

The Resident/User may discontinue the use of estate services provided through the AUNG ONE platform at any time by ceasing to access or use the platform and, where applicable, requesting the deactivation of his or her account.

Termination by the Resident/User shall not relieve the Resident/User of any outstanding payment obligations, liabilities, responsibilities, or other obligations accrued prior to the effective date of termination.

16.2 Suspension or Termination by the Estate

The Estate reserves the right to restrict, suspend, disable, or terminate the Resident/User's access to all or any part of the services provided through the AUNG ONE platform, with or without prior notice, where:

- a.** the Resident/User fails to pay any service charge, levy, subscription, access enablement fee, penalty, assessment, or other amount due to the Estate;
- b.** the Resident/User breaches any provision of this Agreement, estate policies, community regulations, access control requirements, or payment obligations;
- c.** the Resident/User engages in fraudulent, deceptive, unlawful, abusive, disruptive, or unauthorized conduct;

- d.** the Estate reasonably believes that the Resident/User's conduct poses a security, operational, legal, financial, reputational, or community risk to the Estate or its residents;
- e.** the Resident/User attempts to bypass, manipulate, interfere with, or misuse estate services, access controls, security procedures, payment systems, or platform functionality;
- f.** suspension or termination is required to comply with applicable laws, regulations, court orders, directives of competent authorities, or estate governance requirements; or
- g.** the Resident/User ceases to be entitled to occupy, reside within, visit, or otherwise access the Estate.

In such circumstances, the Estate may take immediate action and shall not be liable for any inconvenience, interruption, restriction, denial of access, or loss resulting from such suspension or termination.

16.3 Effect of Suspension or Termination

Upon suspension, restriction, or termination of this Agreement for any reason:

- a.** the Resident/User's right to access and use estate services through the AUNG ONE platform may immediately cease to the extent determined by the Estate;
- b.** the Estate may disable, suspend, restrict, revoke, or deactivate access credentials, visitor authorization rights, access codes, permissions, accounts, and related privileges;
- c.** all outstanding fees, service charges, subscriptions, levies, penalties, assessments, and other amounts owed by the Resident/User shall become immediately due and payable;
- d.** the Resident/User shall cease any unauthorized use of estate services, access credentials, or platform functionality; and
- e.** the Estate may retain relevant records, payment history, transaction logs, access logs, visitor records, and related information where reasonably required for operational, legal, security, evidentiary, compliance, or administrative purposes.

16.4 Survival of Obligations

Suspension, termination, or expiration of this Agreement shall not affect:

- any rights, obligations, liabilities, claims, or remedies accrued prior to termination;
- the Resident/User's obligation to pay any outstanding fees, charges, levies, subscriptions, penalties, or other amounts due to the Estate;
- the Estate's right to recover unpaid amounts or enforce its rights under this Agreement;
- any disciplinary, administrative, or enforcement action arising from events occurring before termination; or
- the continued validity of provisions relating to Confidentiality, Non-Circumvention, Indemnity, Limitation of Liability, Dispute Resolution, Governing Law, Payment Obligations, and any other provision intended to survive termination.

16.5 No Waiver

Any suspension, restriction, termination, or enforcement action taken by the Estate shall be without prejudice to any other rights, remedies, claims, or actions available to the Estate under this Agreement, estate policies, or applicable law.

Any failure, delay, or omission by the Estate in exercising any right or remedy shall not constitute a waiver of such right or remedy, nor prevent the Estate from exercising that right or remedy at any later time.

17. Force Majeure

Neither the **Estate** nor the **Resident/User** shall be liable for any failure, interruption, delay, or inability to perform any obligation under this Agreement (other than payment obligations) where such failure, interruption, delay, or inability results from circumstances beyond the reasonable control of the affected party (a "**Force Majeure Event**").

Force Majeure Events include, without limitation:

- acts of God;
- natural disasters;
- fire, flood, explosion, or severe weather conditions;
- war, terrorism, civil unrest, riots, strikes, or labour disputes;
- pandemics, epidemics, or public health emergencies;
- government actions, laws, regulations, restrictions, directives, or orders;
- power outages, utility failures, or infrastructure breakdowns;
- internet, telecommunications, or network disruptions;
- failures of third-party service providers, payment processors, technology providers, or supporting infrastructure;
- cyberattacks, security incidents, or system failures not caused by the affected party's willful misconduct;
- disruptions affecting estate operations, security systems, access control systems, or community services; and
- any other event or circumstance beyond the reasonable control of the affected party.

Where a Force Majeure Event affects the Estate's ability to provide services, administer access controls, process payments, manage visitor authorizations, operate security systems, or perform any obligation under this Agreement, the Estate may temporarily suspend, restrict, modify, or discontinue affected services for the duration of the Force Majeure Event without liability to the Resident/User.

The Estate shall use reasonable efforts to mitigate the effects of any Force Majeure Event and restore affected services as soon as reasonably practicable.

The Resident/User acknowledges that Force Majeure Events may affect access to estate services, including:

- visitor access authorization;
- resident access credentials;

- payment processing;
- notifications and communications;
- access control systems;
- security operations; and
- other community services provided by the Estate.

Accordingly, the Estate shall not be liable for any inconvenience, delay, interruption, denial of access, or service disruption resulting from a Force Majeure Event.

Nothing in this clause shall excuse, suspend, reduce, or delay the Resident/User's obligation to pay any service charges, subscriptions, levies, fees, penalties, assessments, or other amounts that became due before or during the occurrence of a Force Majeure Event.

For the avoidance of doubt, AUNG Solutions Nigeria Limited provides the AUNG ONE platform solely as a technology service provider and shall not be responsible for any failure, delay, interruption, or disruption caused by a Force Majeure Event affecting the Estate, its operations, infrastructure, or services.

18. Dispute Resolution

18.1 Resolution of User-Estate Disputes

The User acknowledges and agrees that the AUNG ONE platform is provided by AUNG Solutions Nigeria Limited (“AUNG”) solely as a technology and infrastructure service provider.

Accordingly, any dispute, controversy, claim, complaint, or disagreement arising between the User and the participating Estate relating to:

- service charges, subscriptions, levies, or other payments;
- access restrictions or access privileges;
- visitor approvals or rejections;
- resident rights or obligations;

- estate rules, policies, or bylaws;
- estate governance or management decisions;
- security procedures or enforcement actions; or
- any other matter relating to the administration or operation of the Estate,

shall be resolved directly between the User and the Estate, and AUNG shall not be a party to such dispute.

18.2 Exclusion of AUNG from Estate Disputes

The User acknowledges that AUNG does not control or manage the Estate and does not make decisions regarding resident access, visitor approvals, estate governance, payment enforcement, security operations, or community administration.

Accordingly, AUNG shall have no responsibility or liability in relation to any dispute between the User and the Estate and shall not be required to mediate, arbitrate, investigate, or participate in the resolution of such disputes.

18.3 Disputes Relating to the Platform

Any dispute arising directly between the User and AUNG concerning the operation, availability, security, or use of the AUNG ONE platform shall first be addressed through good-faith discussions between the User and AUNG.

Where such dispute cannot be resolved within thirty (30) days, either Party may pursue any remedies available under applicable law.

18.4 Continued Compliance

Pending the resolution of any dispute, the User shall continue to comply with applicable estate policies, payment obligations, platform requirements, and this Agreement.

19. Assignment & Change of Control

19.1 Assignment by the Estate

The User shall not assign, transfer, delegate, sublicense, sell, share, pledge, or otherwise dispose of this Agreement, the User's account, access credentials, access codes, permissions, or any rights or obligations arising under this Agreement without the prior written consent of **AUNG Solutions Nigeria Limited ("AUNG")**.

Any attempted assignment, transfer, delegation, or unauthorized sharing in violation of this clause shall be null and void and may constitute a material breach of this Agreement.

The User acknowledges that platform accounts, access privileges, visitor authorizations, and related services are personal to the registered User and may not be transferred to another person without authorization.

19.2 Change of User Information

The User shall promptly update and maintain accurate account information through the AUNG ONE platform, including any material changes to:

- name or identification details;
- contact information;
- payment information;
- residency status within the participating estate; or
- any other information required for platform administration, security, or verification purposes.

AUNG reserves the right to request additional information or verification where necessary to maintain platform security, account integrity, or regulatory compliance.

19.3 Assignment by AUNG

Notwithstanding any other provision of this Agreement, AUNG may assign, transfer, novate, or otherwise dispose of this Agreement, in whole or in part, without the User's consent, to:

- any affiliate, subsidiary, or related company;
- a successor entity resulting from a merger, acquisition, restructuring, or corporate reorganization;
- any purchaser of substantially all of AUNG's assets or business;
- any investor, strategic partner, or acquirer of the AUNG ONE platform or related business operations; or
- any entity assuming responsibility for the operation or provision of the platform.

Where reasonably practicable, AUNG may provide notice of such assignment through the AUNG ONE platform, email, SMS, or other available communication channels.

Any such assignment shall not materially diminish the User's rights under this Agreement.

19.4 No Transfer of Ownership Rights

Nothing in this Agreement shall be construed as granting the User any ownership interest, equity interest, proprietary rights, or beneficial interest in AUNG, the AUNG ONE platform, its technology, business operations, intellectual property, or related assets.

The User's rights under this Agreement are limited solely to the authorized use of the platform in accordance with its terms.

20. Notices

Any notice, demand, request, approval, communication, warning, reminder, payment notice, access notification, policy update, or other communication relating to the User's residency, access rights, payment obligations, visitor authorization, estate services, or estate operations (each a "Notice") may be delivered electronically by the Estate through:

- a. the AUNG ONE platform;
- b. in-platform notifications, alerts, announcements, or dashboard messages;
- c. electronic mail (email);
- d. SMS or mobile notifications; or
- e. any other communication method approved by the Estate from time to time.

20.2 Notices Between the User and the Estate

The User acknowledges and agrees that all Notices relating to:

- service charges, levies, subscriptions, or fees;
- resident access rights or restrictions;
- visitor approvals or authorizations;
- estate policies, rules, and regulations;
- security notices and community announcements;
- sanctions, warnings, compliance requirements, or enforcement actions; and
- any other estate-related matter,

shall be communicated between the User and the Estate using the contact details associated with the User's account or otherwise provided to the Estate.

The User is solely responsible for ensuring that their contact information remains accurate and up to date.

20.3 Deemed Receipt

A Notice shall be deemed received:

- a. in the case of an in-platform notification, at the time such notice is posted or made available on the User's account dashboard within the AUNG ONE platform;

b. in the case of email, at the date and time of transmission, provided no delivery failure notification is received;

c. in the case of SMS or mobile notification, at the time the message is transmitted to the User's registered mobile number.

The User agrees that failure to review, open, access, or read a Notice shall not affect its validity or effectiveness.

20.4 Role of AUNG

The User acknowledges that AUNG Solutions Nigeria Limited ("AUNG") merely provides the technology platform through which certain Notices may be transmitted.

AUNG shall not be responsible for:

- the content, accuracy, legality, or validity of Notices issued by the Estate;
- the Estate's failure to issue any Notice;
- the User's failure to receive, read, or respond to any Notice; or
- any dispute arising from communications exchanged between the User and the Estate.

All estate-related communications and notices shall remain the sole responsibility of the Estate and the User.

21. Regulatory Position

The User acknowledges and agrees that **AUNG ONE** is a community transaction, access management, and estate operations platform designed for use within residential estates, gated communities, and other organized properties.

The AUNG ONE platform is intended to facilitate:

- community payments and collections;
- resident subscriptions and service charge administration;
- visitor authorization and access management;
- resident verification and access control; and

- other estate-related operational workflows within a closed or semi-closed community environment.

The User further acknowledges that AUNG Solutions Nigeria Limited ("AUNG") operates solely as a technology and infrastructure service provider and does not operate as:

- a bank;
- a deposit-taking institution;
- a public payment service provider;
- a financial intermediary; or
- any other regulated financial institution serving the general public.

Accordingly, the User agrees that the use of the AUNG ONE platform does not create a banking, fiduciary, trustee, agency, partnership, or financial advisory relationship between the User and AUNG.

The participating Estate shall remain solely responsible for:

- estate governance and administration;
- resident communications and enforcement actions;
- service charge policies and payment enforcement;
- access control policies and security procedures;
- compliance with applicable laws, regulations, bylaws, and statutory obligations relating to the Estate's operations.

The User acknowledges that AUNG does not determine estate policies, resident obligations, access privileges, security decisions, or governance matters, and shall not be responsible for any action or decision taken by the Estate in relation to such matters.

Nothing in this Agreement shall be construed as creating, transferring, or imposing any regulatory, governance, fiduciary, or administrative responsibility on AUNG beyond those expressly required by applicable law.

For the avoidance of doubt, any dispute relating to estate governance, service charges, resident obligations, access restrictions, community rules, or estate management shall remain a matter between the User and the Estate.

23. Entire Agreement

23. Entire Agreement

This Agreement constitutes the entire agreement between the **Estate** and the **Resident/User** with respect to the Resident's access to and use of the Estate's services,

access control systems, payment services, visitor authorization processes, and other community-related services made available through the **AUNG ONE platform**.

This Agreement supersedes all prior or contemporaneous discussions, understandings, representations, communications, arrangements, or agreements between the Estate and the Resident relating to the subject matter of this Agreement, whether oral or written.

The Estate reserves the right to amend, update, modify, or replace this Agreement from time to time where reasonably necessary for operational, legal, regulatory, security, or administrative purposes.

Any amendment, variation, or modification shall be communicated to Residents through the **AUNG ONE platform**, electronic mail, in-platform notifications, SMS, or any other communication channel approved by the Estate.

The Resident acknowledges and agrees that continued access to or use of the Estate's services, facilities, access control systems, payment systems, or any functionality provided through the AUNG ONE platform after the effective date of any amendment shall constitute acceptance of the revised terms, unless otherwise prohibited by applicable law.

For the avoidance of doubt, **AUNG Solutions Nigeria Limited is not a party to this Agreement and merely provides the technology platform through which this Agreement is made available and administered.** Any rights, obligations, or responsibilities arising under this Agreement shall exist solely between the Estate and the Resident, except where expressly stated otherwise by applicable law.

24. Limitation of Liability

To the fullest extent permitted by applicable law, neither the **Estate**, its management, officers, employees, agents, contractors, nor **AUNG Solutions Nigeria Limited**, acting solely as the provider of the AUNG ONE platform, shall be liable to the Resident/User for any indirect, incidental, consequential, special, exemplary, or punitive damages arising out of or in connection with:

- the Resident's use or inability to use the AUNG ONE platform;
- access restrictions implemented in accordance with estate policies;
- delays in visitor approvals, access authorization, or payment processing;
- temporary service interruptions, system downtime, network failures, or technical issues;
- loss of profits, loss of income, loss of business opportunity, loss of goodwill, reputational damage, or loss of data; or
- any actions or decisions taken by the Estate in the administration, management, security, or governance of the Estate.

The Resident acknowledges that access to the Estate, visitor authorization, payment compliance, and other community services may be subject to estate rules, operational procedures, and system-based controls, and that neither the Estate nor AUNG guarantees uninterrupted access to any service.

To the maximum extent permitted by law, the aggregate liability of the Estate arising from any claim connected with this Agreement shall not exceed the total amount of fees, subscriptions, service charges, or other payments paid by the Resident to the Estate through the AUNG ONE platform during the twelve (12) months immediately preceding the event giving rise to the claim.

Nothing in this Agreement shall exclude or limit liability for fraud, willful misconduct, or any liability that cannot be excluded or limited under applicable law.

For the avoidance of doubt, **AUNG Solutions Nigeria Limited is not a party to this Agreement and shall have no liability to the Resident in respect of estate governance, security decisions, access restrictions, service charge enforcement,**

visitor approvals, or any other matter arising from the Estate's administration or operation.

25. Independent Contractor Relationship

Nothing in this Agreement shall be construed as creating any partnership, joint venture, agency, employment, fiduciary, tenancy, ownership, or representative relationship between the **Estate** and the **Resident/User**.

The Resident acknowledges that access to estate services, facilities, payment systems, visitor authorization services, access control systems, and other community-related services through the **AUNG ONE platform** does not create any ownership interest, employment relationship, agency relationship, or special legal status within the Estate.

The Resident shall not represent, hold himself or herself out, or imply that he or she is authorized to act on behalf of the Estate, its management, employees, agents, contractors, or representatives unless expressly authorized in writing by the Estate.

Similarly, the Estate shall not be deemed to be the agent, employee, representative, or legal proxy of any Resident by virtue of this Agreement or the Resident's use of estate services.

For the avoidance of doubt, **AUNG Solutions Nigeria Limited provides the AUNG ONE platform solely as a technology service provider and is not a party to the resident-estate relationship created under this Agreement.** Nothing contained herein shall be construed as creating any partnership, agency, employment, fiduciary, or representative relationship between AUNG, the Estate, and/or the Resident.

Each Party shall remain solely responsible for its own actions, obligations, decisions, liabilities, and compliance requirements under applicable laws and estate policies

26. Severability

If any provision of this Agreement is determined by a court, tribunal, arbitrator, or other authority of competent jurisdiction to be invalid, illegal, unenforceable, or contrary to applicable law, such provision shall be deemed modified to the minimum extent necessary to make it valid, legal, and enforceable while preserving its original intent as closely as possible.

If such modification is not possible, the affected provision shall be deemed severed from this Agreement and shall not affect the validity, legality, or enforceability of the remaining provisions.

The remaining provisions of this Agreement shall continue in full force and effect and shall remain binding on both the **Estate** and the **Resident/User** as though the invalid, illegal, or unenforceable provision had never formed part of this Agreement.

For the avoidance of doubt, the invalidity or unenforceability of any provision shall not affect the continued validity and enforceability of the Estate's rights relating to payment obligations, access control, resident compliance, confidentiality, dispute resolution, indemnity, or any other provision intended to survive such determination.

Electronic Acceptance & Execution

BY TICKING THE “I AGREE”, “ACCEPT”, OR “ACCEPT TERMS AND CONDITIONS” CHECKBOX ON THE AUNG ONE PLATFORM, THE RESIDENT/USER ACKNOWLEDGES THAT HE OR SHE HAS READ, UNDERSTOOD, AND AGREES TO BE LEGALLY BOUND BY THE TERMS AND CONDITIONS OF THIS AGREEMENT WITH THE ESTATE.

The Estate and the Resident/User expressly agree that:

- a. ticking the acceptance checkbox, clicking an acceptance button, creating an account, generating an access credential, making a payment, accessing estate services, or otherwise electronically indicating assent through the AUNG ONE platform shall constitute valid acceptance and execution of this Agreement by the Resident/User;
- b. such electronic acceptance shall have the same legal force and effect as a handwritten signature, physical execution, or written acceptance of this Agreement;
- c. no physical signature, seal, stamp, notarization, or witness shall be required for the validity, enforceability, or admissibility of this Agreement;
- d. the Resident/User represents and warrants that he or she has the legal capacity and authority to enter into this Agreement and to be bound by its terms and conditions;

e. any system-generated, electronically stored, digitally recorded, or archived version of this Agreement, together with records evidencing acceptance, account activity, platform usage, payment activity, access code generation, or other electronic records maintained through the AUNG ONE platform, shall constitute conclusive evidence of acceptance and shall be admissible in any legal, regulatory, administrative, or dispute resolution proceedings; and

f. where a parent, guardian, property owner, tenant representative, company representative, or other authorized person accepts this Agreement on behalf of another person or entity, such person represents and warrants that he or she has full authority to bind the relevant person or entity to the terms of this Agreement.

This Agreement shall be deemed executed and become effective on the date and time the Resident/User electronically accepts the Agreement through the AUNG ONE platform or first accesses, uses, or benefits from any service, feature, or functionality provided by the Estate through the platform, whichever occurs first.

For the avoidance of doubt, AUNG Solutions Nigeria Limited is not a party to this Agreement. It merely provides the technology platform through which this Agreement is presented, accepted, and administered. The rights and obligations created under this Agreement shall exist solely between the Estate and the Resident/User.